

24NWCV02123 24NWCV02123

County: los-angeles

Division: Civil Law and Motion

Department: P

Hearing date: 2026-07-10

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=SE%20%2CP%2C07%2F10%2F2026

Source SHA-256: 5a02ced16ccb7a8003412e71c1f032a383c6458a601dd4fed11f38433a163d1c

Case Number: 24NWCV02123 Hearing Date: July 10, 2026 Dept: P

MIGUEL GARCIA v. HYUNDAI MOTOR AMERICA

CASE NO.:

24NWCV02123

HEARING: 07/10/2026 @ 9:30 AM

#18

TENTATIVE ORDER

Plaintiff

Miguel Garcia's motion to reopen
discovery is DENIED.

Moving party to give notice.

Plaintiff Miguel Garcia (Plaintiff) moves to re-open
discovery to conduct the deposition of Defendant Hyundai Motor America's
(Defendant) person most knowledgeable.

Background

On July 11, 2024, Plaintiff filed this lemon law action
against Defendant and Does 1 through 10, inclusive. This action arises out of
Plaintiff's October 24, 2020 purchase of a 2020 Hyundai Elantra, VIN No.:
5NPD84LF0LH605564 (Subject Vehicle) and its accompanying warranties.
(Complaint, ¶ 8.) Plaintiff alleges the Subject Vehicle was delivered with

defects and nonconformities to warranties including engine, emission, and electrical system defects. (Complaint, ¶ 10.) The complaint asserts three causes of action: (1) violation of Song-Beverly Act – breach of express warranty, (2) violation of Song-Beverly Act – breach of implied warranty, and (3) violation of Song-Beverly Act section 1793.2.

On May 11, 2026, the Court denied Plaintiff's ex parte application to continue trial. On May 13, 2026, the Court denied Plaintiff's ex parte application to continue trial.

On May 14, 2026, this matter was called for trial. After peremptory challenges, this matter was returned to this Court. (Order, 5/14/26.) The Court continued the trial date to July 27, 2026. (Order, 5/14/26.)

On June 10, 2026, the Court granted Defendant's ex parte application requesting clarification on whether discovery remained closed following the 5/14/26 Order. The Court stated: "The Court clarifies: discovery is closed and the May 14, 2026 Order did not re-open discovery. At no point in the Order did the Court re-open discovery." (Order, 6/10/26.)

On June 10, 2026, the Court denied Plaintiff's ex parte application to re-open discovery but specially set the instant motion for today's date.

Legal Standard

"On motion of any party, the court may grant leave to complete discovery proceedings, or to have a motion concerning discovery heard, closer to the initial trial date, or to reopen discovery after a new trial date has been set. This motion shall be accompanied by a meet and confer declaration under Section 2016.040." (Code Civ. Proc. § 2024.050 subd. (a).)

"In exercising its discretion to grant or deny this motion, the court shall take into consideration any matter relevant to the leave requested, including, but not limited to, the following: (1) The necessity and the reasons for the discovery. (2) The diligence or lack of diligence of the party seeking the discovery or the hearing of a discovery motion, and the reasons that the discovery was not completed or that the discovery motion was not heard earlier. (3) Any likelihood that permitting the discovery or hearing

the discovery motion will prevent the case from going to trial on the date set, or otherwise interfere with the trial calendar, or result in prejudice to any other party. (4) The length of time that has elapsed between any date previously set, and the date presently set, for the trial of the action.” (Code Civ. Proc., § 2024.050, subd. (b)(1)-(4).)

Meet and Confer

A motion to reopen discovery “shall be accompanied by a meet and confer declaration under Section 2016.040.” (Code Civ. Proc. § 2024.050 subd. (a).)

Plaintiff’s counsel emailed defense counsel regarding reopening discovery and defense counsel was not agreeable. (Schmitt Decl., ¶ 12.)

Discussion

Plaintiff

moves to reopen discovery to conduct the deposition of Defendant’s PMK.

Plaintiff

contends that he has been diligent in trying to depose Defendant’s PMK. Plaintiff argues that Defendant has ignored attempts to meet and confer regarding the deposition of Defendant’s PMK over the course of the litigation. Plaintiff states that he first noticed the deposition of Defendant’s PMK on September 4, 2024 and requested Defendant provide alternative dates at that time. (Schmitt Decl., ¶¶ 3-4.) Plaintiff states Defendant provided boilerplate objections and responded that it would work with Plaintiff’s counsel to schedule a mutually agreeable date. (Schmitt Decl., ¶ 5.) Plaintiff states that Defendant served an amended notice of deposition on November 4, 2024, but never received a response. (Schmitt Decl., ¶¶ 6-7.)

Plaintiff

further contends that reopening discovery would not prevent this case from going to trial on July 27, 2026. Additionally, Plaintiff argues that it is entitled to depose Defendant’s PMK and the purpose of the discovery statutes will be furthered by reopening discovery.

In

opposition, Defendant argues that this motion is a result of Plaintiff’s lack

of diligence with discovery. Defendant states that it has no record of receiving the November 4, 2024 amended notice of deposition. (Williams Decl., ¶¶ 3-5.) Defendant emphasizes that even if Plaintiff did notice a deposition in November of 2024, Plaintiff does not provide any explanation as to why he let the issue of deposing Defendant's PMK lie dormant for over a year and a half, passed the date initially set for trial. Defendant notes that Plaintiff could have met and conferred had it realized that Defendant had not responded at all to the amended notice.

Here, the

Court does not find that Plaintiff was diligent in pursuing this discovery. Between the time Plaintiff first served a notice of deposition of Defendant's PMK to the initial trial date, the record shows both Plaintiff and Defendant brought and litigated discovery motions. Plaintiff does not explain why the parties met and conferred regarding other discovery but Defendant specifically "stonewalled" Plaintiff as to the deposition of its PMK. (Mot., 3:5.) While the Court agrees that the necessity of the discovery factor weighs in favor of Plaintiff, Plaintiff does not adequately explain why he did not prioritize such discovery. (Code Civ. Proc., § 2025.010.) Plaintiff's lack of diligence is most highlighted by the fact that this matter was called for trial on May 14, 2026, yet Plaintiff only raised this issue after this matter was initially called for trial.

Additionally,

the Court finds that Defendant establishes that reopening discovery would be prejudicial and disrupt trial preparation. Specifically, Defendant contends that conducting this deposition prior to July 27, 2026, would divert resources, require witness preparation, and potentially create new disputes on the eve of trial.

Accordingly,

Plaintiff's motion to reopen discovery is DENIED.